AfghanTours.com

Official Terms of Service

Operated by: James Tourist & Travel Agency
License No: ATO-KBL-1617
Effective Date: 22 January 2026

1. LEGAL FRAMEWORK & SCOPE

These Terms of Service ("Terms") constitute a binding agreement between the traveler ("Client") and James Tourist & Travel Agency (JTT), a licensed tour operator headquartered in Kabul, Afghanistan.

- **Operational Authority:** All services are provided under the legal authority and licensing of JTT.
- **Service Definition:** AfghanTours.com facilitates travel planning, guided expeditions, secure transportation, and permit acquisition within Afghanistan.
- **Third-Party Integration:** JTT coordinates with independent providers (hotels, drivers, airlines). While we vet these partners for reliability, they operate as independent contractors.

2. ITINERARIES & DYNAMIC PLANNING

Travel in Afghanistan requires operational flexibility.

- **Good Faith Estimates: It**ineraries are proposed as estimates. JTT reserves the right to modify routes, schedules, or activities due to weather, infrastructure access, or security mandates.
- **Prioritization:** Itinerary changes are governed by a "Safety-First" protocol, prioritizing guest security and cultural compliance over the original schedule.

Our operational framework is built upon proactive mitigation rather than reactive response.

3. BOOKING, PAYMENTS & DOCUMENTATION

- **Confirmation:** A tour is only legally confirmed once JTT issues a formal Written Confirmation following the receipt of the required deposit.
- **Pricing Volatility:** Prices are subject to adjustment prior to final confirmation based on fluctuating fuel costs, permit fees, or local staffing requirements.
- **Unified Billing Policy:** In accordance with our operational standards, couples booking together are treated as a single administrative unit. Shared accommodation is provided under a single combined charge to ensure logistical and billing efficiency.

4. . CANCELLATIONS, CHANGES & REFUNDS

- **Non-Refundable Costs:** Any costs already incurred (permits, non-refundable lodging deposits, or specialized staffing) will be deducted from any potential refunds.
- **Modification Preference:** JTT will prioritize rescheduling or re-routing a trip over cancellation whenever the security environment allows.

- **Force Majeure:** No refunds are guaranteed for services disrupted by events beyond JTT's reasonable control, including government actions or security incidents.

5. CLIENT OBLIGATIONS & CONDUCT

By engaging the services of JTT, the Client assumes the following responsibilities:

- **Legal Compliance:** Possession of a valid passport, visa, and all required entry permits is the sole responsibility of the Client.
- **Insurance Mandate:** Clients must maintain personal medical and travel insurance that explicitly covers high-risk territories and emergency evacuation.
- **Code of Conduct:** Clients must adhere to Afghan laws and local cultural norms. JTT reserves the right to terminate services immediately, without refund, if a Client's behavior creates a legal or safety risk to the group or the Agency.

6. RISK ASSUMPTION & LIABILITY LIMITATIONS

- **Assumption of Risk:** The Client acknowledges that travel in Afghanistan involves inherent hazards. By participating, the Client voluntarily assumes all risks associated with political instability, civil unrest, and remote geography.
- **Liability Cap:** To the fullest extent permitted by Afghan law, JTT's liability for any claim is strictly limited to the total amount paid by the Client for the specific service affected.
- **Indirect Loss:** JTT is not liable for indirect, consequential, or "Force Majeure" losses, including delays caused by regional security shifts.

7. MEDIA, PRIVACY & SENSITIVE DATA

- **Photography Protocol:** Guests must exercise extreme discretion. Photography of military installations, government buildings, or individuals without express permission is strictly prohibited.
- **Data Usage:** Personal information is handled with high confidentiality, used exclusively for securing permits, hotel reservations (including unified couple bookings), and mandatory government reporting.

8. GOVERNING LAW

These Terms are governed by the laws of the de facto authorities of Afghanistan. Any disputes arising from these Terms shall be settled through the appropriate legal or administrative channels in Kabul, Afghanistan.

Acknowledgment:
By proceeding with a booking via AfghanTours.com, the Client acknowledges they have read, understood, and agreed to these Terms of Service.

Approval: Management Board, James Tourist & Travel Agency

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